

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	2025-1505236 Executive Financial Enterprises, Inc. vs. Patriot Golf Inc.	The unopposed motion by Defendant Patriot Golf, Inc. ("Defendant") for an order vacating the default and default judgment entered against Defendant is granted. Defendant seeks both discretionary and mandatory relief from the default and default judgment entered against Defendant. Plaintiff did not oppose the motion. <u>Applicable legal authority</u> "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken..." (Code Civ. Proc., § 473, subd. (b).) The Court "shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is

accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310." (Code Civ. Proc., § 473, subd. (b).)

"[T]he law favors disposing of cases on their merits." (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696.) Any doubts in applying California Code of Civil Procedure section 473 "must be resolved in favor of the party seeking relief from default." (*Id.*) A Court order denying relief "is scrutinized more carefully than an order permitting trial on the merits." (*Id.*) As such, if a party promptly seeks relief and there is no showing of prejudice to the non-defaulting party, "very slight evidence will be required to justify a court in setting aside the default." (*Id.* [internal citations omitted].)

The moving party carries the burden of establishing inadvertence, surprise, mistake or excusable neglect by a preponderance of the evidence. (*Transit Ads, Inc. v. Tanner Motor Livery, Ltd.* (1969) 270 Cal.App.2d 275, 279.) Also, the neglect of counsel is generally imputed to the client. (*See, Elston v. City of Turlock* (1985) 38 Cal.3d 227, 236.)

One ground for discretionary relief is inadvertence. In *Elm v. Elm* (1946) 72 Cal.App.2d 508, the court explained that: "To warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. Freeman on Judgments, 5th Ed., Vol. 1, p. 482; *Shearman v. Jorgenson*, 106 Cal. 483, 485, 39 P. 863. It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. Freeman, 483, 5th Ed. Courts neither act as guardians for incompetent parties nor for

		those who are grossly careless of their own affairs.” (<i>See, Elm</i>, at 513.) Another ground for discretionary relief is mistake. Mistake, within the context of CCP section 473, can be a mistake of fact or a mistake of law. An example of a mistake of fact is when an attorney erroneously thought only one of two defendants he was employed to defend had been served. (<i>See, Lieberman v. Aetna Ins. Co.</i> (1967) 249 Cal.App.2d 515, 523-524.) A mistake of law must be on a legal problem where the issue is complex and debatable, a simple mistake of law is not a basis for relief. (<i>See, Standard Microsystems Corp. v. Winbond Electronics Corp.</i> (2009) 179 Cal.App.4th 868, 879.) Next, is the ground of surprise. In <i>State Farm Fire & Casualty Co. v. Pietak</i> (2001) 90 Cal.App.4th 600, the court noted that “surprise” means some condition or situation in which a party is unexpectedly injured, without any default or negligence of his own, which ordinary prudence could not have guarded against. (<i>Id.</i>, at 611, citing <i>Credit Managers Assn. v. National Independent Business Alliance</i> (1984) 162 Cal.App.3d 1166, 1173.) Finally, excusable neglect means that “... the acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” (<i>See, Jackson v. Bank of America</i> (1983) 141 Cal.App.3d 55, 58.) Defendant showed relief should be granted due to Defendant’s excusable neglect. (Motion, 7:23-8:6 and 8:23-10:7; Boyle Decl., ROA No. 26, ¶¶ 1-4 and 6.) In addition, Defendant’s attorney submitted an affidavit of fault. (Hagerty Decl., ROA No. 28, ¶¶ 1-10, 12, and 13.) Defendant timely filed this motion. Defendant submitted a copy of Defendant’s proposed answer in support of this motion. (Hagerty Decl., ROA No. 28, ¶ 10, Exhibit A.) Accordingly, Defendant’s unopposed motion is granted. Defendant shall serve and file the proposed answer attached as Exhibit A to Hagerty’s declaration within 10 days. Defendant shall give notice.
2.	2024-1374052 JMAN Coastal LLC vs. Six Lanterns Homeowners Association	Plaintiff JMAN Coastal LLC’s motion to compel defendant Six Lanterns Homeowners Association (the “HOA” or “Defendant”) to provide further responses to form interrogatories, set two, no. 17.1 is denied in part and granted in part. It is denied as to 17.1 responses for RFA nos. 36, 39, and 8. It is granted as to responses to RFA nos.